

25NNCV08935 25NNCV08935

County: los-angeles

Division: Civil Law and Motion

Department: V

Hearing date: 2026-08-27

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Case Number: 25NNCV08935 Hearing Date: August 27, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

ROSA AGUILAR,

Plaintiff,

vs.

SEVAG BASTIAN, MD, et al.,

Defendants.

Case

No.:

25NNCV08935

Hearing

Date:

August

27, 2026

Time:

8:30 a.m.

[TENTATIVE]

Order RE: MOTION TO COMPEL RESPONSES TO DEFENDANT'S SPECIAL AND FORM
INTERROGATORIES, SET ONE

MOVING PARTY: Defendant Sevag A. Bastian, M.D.

RESPONDING PARTY: None

The court
considered the moving papers filed in connection with this motion. No
opposition was filed.

BACKGROUND

On December 16, 2025,
Plaintiff Rosa Aguilar (Plaintiff)
filed a complaint against Defendant Sevag Bastian, M.D., Douglas Brown, M.D.,
and Radnet Managed Imaging Services, Inc, alleging a cause of action for
negligence, arising out of Defendants' care and treatment of a lump/mass on
Plaintiff's left elbow. Plaintiff alleges that Defendant Dr. Bastian
incorrectly diagnosed Plaintiff. Plaintiff alleges the lump was excised
resulting in the tumor being fragmented, as the excision was not performed in a
manner to identify and confirm the mass/tumor margins, which resulted in the
surgical bed being contaminated with what was subsequently diagnosed as a
Malignant Spindle Cell tumor-Myxofibrosarcoma. In that surgery a tumor mass was
excised, and the excised fragmented tumor mass was sent to pathology and
reported a pathologic diagnosis of Malignant Spindle Cell Tumors and
Myxofibrosarcoma. Plaintiff alleges that because the bed contaminated with
malignant cancer cells during the surgery, she was at high risk for recurrence
of the Sarcomas and malignancies.

On March 16, 2026,
Defendant filed an answer to Plaintiff's complaint.

On March 16, 2026,
Plaintiff's counsel's motion to be relieved as counsel was granted.

On June 4, 2026,
Defendant filed this motion to compel Plaintiff's responses to request for
production, set one.

No opposition has been filed.

LEGAL STANDARD

Where there has been no timely response to a
demand for the production of documents, the demanding party may seek an order
compelling a response. (Code Civ. Proc.
§ 2031.300(b).) Failure to timely
respond waives all objections, including privilege and work product. (Code Civ. Proc. § 2031.300(a).) Thus, unless the party
to whom the demand was
directed obtains relief from waiver, he or she cannot raise objections to the
documents demanded. There is no deadline
for a motion to compel responses.
Likewise, for failure to respond, the moving party need not attempt to
resolve the matter outside court before filing the motion.

Sanctions

Sanctions may be imposed for misuse of
discovery process. (Code Civ. Proc., section 2023.030, subd. (a).)
Failing to respond or to submit to an authorized method of discovery
constitutes a misuse of the discovery process. (Code Civ. Proc., section
2023.010, subd. (d).)

Sanctions are mandatory in connection with motions to compel
responses to production of documents against any party, person, or attorney who
unsuccessfully makes or opposes a motion to compel unless the court "finds that
the one subject to the sanction acted with substantial justification or that
other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. § 2031.300(c).)

DISCUSSION

On March 16, 2026, Defendant served Request for
Production on Plaintiff. (Sakadjian Decl., ¶ 3; Exh. A.) To date, Plaintiff has
failed to provide verified responses, despite Defendant's meet and confer

efforts. (Id., ¶¶ 4-7; Exh. B.)

Plaintiff

was properly served with the discovery at issue, and has failed to provide responses. Accordingly, Defendant is entitled to an order compelling Plaintiff to provide responses to the discovery at issue. The motion is granted.

Defendant

seeks sanctions in the amount of \$1,060 against Plaintiff under Code of Civil Procedure sections 2030.290, 2023.010, and 2023.030. Because the failure to respond is a misuse of the discovery process, Defendant is entitled to sanctions. However, the award for sanctions will be reduced due to the motion's straightforward nature, its similarity to other motions filed in this matter, and the lack of an opposition. Plaintiff is ordered to pay \$560 in sanctions (\$250 an hour for 2 hours, plus \$60 filing fees) to Defendant's counsel within 20 days of this order.

CONCLUSION

Based on the foregoing, the court GRANTS Defendant's motion to compel responses to his first set of Request for Production of Documents. Plaintiff is ordered to provide responses within 20 days of this order.

The court GRANTS Defendant's request for sanctions. Plaintiff is ordered to pay \$560 in sanctions to Defendant's counsel within 20 days of this order.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 27, 2026

Sarah
J. Heidel

Judge

of the Superior Court